

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KEVIN SCOTT,

Index No.:

Plaintiff,

SUMMONS

-against-

**Plaintiff designates New York
County as Place of Trial.**

SERGEANT JAMES GATTO and SERGEANT
HAN CHOI (Shield No. 00713),

**The basis of venue is location
of occurrence:**
8th Avenue between
35th and 36th street
New York, New York 10018

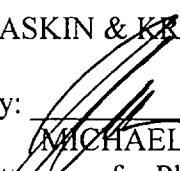
Defendants.
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TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint with interest and cost from the date of occurrence.

Dated: New York, New York
March 23, 2018

RASKIN & KREMINS, L.L.P.

By: 

MICHAEL F. KREMINS, ESQ.

Attorneys for Plaintiff

KEVIN SCOTT

160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

TO:

DEFENDANTS:

SERGEANT JAMES GATTO
67th Precinct
NEW YORK CITY POLICE DEPARTMENT
2820 Snyder Avenue
Brooklyn, New York 11226

AND

SERGEANT JAMES GATTO
NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, Room 1406
New York, New York 10038

SERGEANT HAN CHOI (Shield No. 00713)
NYPD TRANSIT BUREAU
1 Police Plaza
New York, New York 10038

AND

SERGEANT HAN CHOI (Shield No. 00713)
NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, Room 1406
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
KEVIN SCOTT,**VERIFIED COMPLAINT**

Plaintiff,

Index No.:

-against-

SERGEANT JAMES GATTO and SERGEANT
HAN CHOI (Shield No. 00713),Defendants.
-----X

Plaintiff, KEVIN SCOTT, by his attorneys, RASKIN & KREMINS, L.L.P., complaining of above named Defendants alleges the following, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times mentioned herein, Defendant SERGEANT JAMES GATTO, (hereinafter GATTO) was and still is employed by The City of New York.
2. That at all times mentioned herein, Defendant GATTO was and still is employed by the New York City Police Department.
3. That at all times mentioned herein, Defendant GATTO was a member of the New York City Police Department with the title and rank of police officer on April 28, 2015.
4. That at all times mentioned herein, Defendant SERGEANT HAN CHOI, Shield No. 00713, (hereinafter CHOI) was and still is employed by The City of New York.
5. That at all times mentioned herein, Defendant CHOI was and still is employed by the New York City Police Department.
6. That at all times mentioned herein, Defendant CHOI was a member of the New York City Police Department with the title and rank of sergeant on April 28, 2015.

7. That on April 28, 2015, at approximately between 5:30 p.m. and 5:45 p.m., Plaintiff was lawfully walking on the public sidewalk on 8th Avenue between 35th and 36th Street in the County, City and State of New York.

8. That on April 28, 2015, at approximately between 5:30 p.m. and 5:45 p.m. at and about 8th Avenue between 35th and 36th Street in the County, City and State of New York, Defendants, GATTO and CHOI, acting under the color of law, and without probable cause or provocation, viciously and maliciously falsely detained, searched, arrested, imprisoned, and confined Plaintiff; that thereafter, Defendants, GATTO and CHOI, transported Plaintiff from the aforesaid location to the Midtown South Precinct of the New York City Police Department, and continued to wrongfully confine, and imprison Plaintiff for approximately three to four hours, all of which deprived Plaintiff of his liberty.

9. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement; and the arrest, imprisonment, and confinement were not otherwise privileged or with just or probable cause.

10. That the aforesaid acts of Defendants GATTO and CHOI under color of law as employees, agents and/or servants of The City of New York and The New York City Police Department, violated Plaintiff's right to due process, violated Plaintiff's liberty interests, violated Plaintiff's property interests, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution, and are therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

11. That the aforesaid acts of Defendants GATTO and CHOI under color of law as employees, agents and/or servants of The City of New York and The New York City Police Department violated 42 U.S.C. §1983.

12. That the aforesaid acts of Defendants, GATTO and CHOI, under color of law, each, as individuals, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and are therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

13. That Defendants, GATTO and CHOI, under color of law, each, as individuals, violated 42 U.S.C. §1983.

14. That the aforesaid actions of Defendants, GATTO and CHOI, each, as individuals, constituted an unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

15. That prior to and on April 28, 2015 there existed a policy, custom and practice, and/or course of conduct within the City of New York and/or the New York City Police Department wherein police officers were directed, permitted, and/or allowed to stop and frisk individuals walking on a public sidewalk without probable cause.

16. That prior to and on April 28, 2015 there existed a policy, custom and practice, and/or course of conduct within the City of New York and/or the New York City Police Department wherein police officers were directed, permitted, and/or allowed to stop and frisk and seize property from individuals, walking on a public sidewalk, without probable cause.

17. That prior to and on April 28, 2015, there existed a policy, custom and practice, and/or course of conduct within the City of New York and/or the New York City Police Department wherein police officers were directed, permitted, and/or allowed to target, stop and frisk and detain and confine individuals, walking on a public sidewalk wearing certain type of clothing apparel known as a “hoody” or “hoodie”, without probable cause.

18. That prior to and on April 28, 2015, there existed a policy, custom and practice, and/or course of conduct within the City of New York and/or the New York City Police Department wherein police officers were directed, permitted, and/or allowed to arrest individuals for possession of a “gravity knife” without any protocol, rules, and procedures to determine whether a specific knife is a “gravity knife.”

19. That prior to and on April 28, 2015, there existed a policy, custom and practice, and/or course of conduct within the City of New York and/or the New York City Police Department wherein police officers were directed, permitted, and/or allowed to arrest individuals for possession of a “gravity knife” without any protocol, rules, and procedures to determine whether a specific knife is a “gravity knife” which leads to arrests without probable cause in violation of an individual’s rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution including an individual’s liberty interests and an individual’s right to be free from unreasonable search and seizure.

20. That prior to and on April 28, 2015, there existed a policy, custom and practice, and/or course of conduct within the City of New York and/or the New York City Police Department wherein police officers were directed, permitted, and/or allowed to arrest individuals walking on a public sidewalk, or otherwise, for possession of a “gravity knife” when the presumed

“gravity knife” is in a closed position and is otherwise not being used during any observed criminal activity.

21. That prior to and on April 28, 2015, there existed a policy, custom and practice, and/or course of conduct within the City of New York and/or the New York City Police Department wherein police officers were directed, permitted, and/or allowed to arrest individuals walking on a public sidewalk, or otherwise, for possession of a presumed “gravity knife” in a haphazard and reckless manner and without any set protocol, procedure, or policy to determine the legitimate purpose of the presumed “gravity knife”, which leads to arrests without probable cause in violation of an individual’s rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution including an individual’s liberty interests and an individual’s right to be free from unreasonable search and seizure.

22. That prior to and on April 28, 2015, Defendants GATTO and CHOI had knowledge of and/or were aware of, and/or condoned all the aforesaid policies, custom and practice, and/or course of conduct within the City of New York and/or the New York City Police Department concerning “gravity knife” and certain clothing apparel known as a “hoody” or “hoodie” heretofore set forth hereinabove.

23. That prior to April 28, 2015, Defendants GATTO and CHOI arrested individuals for possession of a “gravity knife” without any set protocols, policy, or procedure to determine whether a specific knife constitutes a “gravity knife”.

24. That prior to April 28, 2015, Defendants GATTO and CHOI arrested individuals for possession of a “gravity knife” without any set protocols, policy, or procedure to determine whether there is a legitimate purpose for possessing a presumed “gravity knife”.

25. That prior to April 28, 2015, Defendants GATTO and CHOI arrested individuals for possession of a “gravity knife” under circumstances where the presumed “gravity knife” was in a closed, or folded position, and was not otherwise being used during observed criminal activity.

26. That prior to April 28, 2015, Defendants GATTO and CHOI arrested individuals for possession of a “gravity knife” where the individual maintains a legitimate purpose for possessing a presumed “gravity knife.”

27. That prior to April 28, 2015, Defendants GATTO and CHOI targeted, stopped, frisked, detained, confined, and searched individuals walking on a public sidewalk wearing a certain type of clothing apparel known as a “hoody” or “hoodie” without observing any criminal activity and/or otherwise without probable cause.

28. That because of the foresaid policies, custom and practice, and/or prior course of conduct directed, promulgated, permitted and allowed to exist by the City of New York and/or the New York City Police Department, on April 28, 2015, Defendants GATTO and CHOI unlawfully targeted Plaintiff, unlawfully stopped and frisked Plaintiff, falsely arrested, imprisoned, and confined Plaintiff, all without probable cause, because Plaintiff was wearing a “hoody” or “hoodie” while walking on a public sidewalk at the aforesaid location, in violation of Plaintiff’s rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

29. That because of the aforesaid policies, custom and practice, and/or prior course of conduct directed, promulgated, permitted, and/or allowed to exist by the City of New York and/or the New York City Police Department, on April 28, 2015, Defendants GATTO and CHOI unreasonably stopped, detained, frisked, and searched Plaintiff without probable cause and seized a folded, closed, knife from the inside front pocket of Plaintiff’s pants, which Plaintiff legitimately

uses in furtherance of his employment duties, without probable cause and falsely arrested Plaintiff and charged Plaintiff with criminal possession of a weapon in the fourth degree. i.e. for possession of a “gravity knife”, without probable cause in violation of Plaintiff’s rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

30. That Defendants, GATTO and CHOI, did not observe Plaintiff hold or otherwise use the presumed “gravity knife” in the furtherance of criminal activity prior to stopping, frisking, detaining, searching and arresting Plaintiff on April 28, 2015.

31. That by reason of the foregoing conduct of Defendants, GATTO and CHOI, in violation of Plaintiff’s rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the Constitution of the United States and in violation of Plaintiff’s rights accorded pursuant to 42 §U.S.C. 1983, Plaintiff has sustained damages in a sum that exceeds the jurisdictional limits of all lower courts.

32. That by reason of the foregoing violations of Plaintiff’s rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to Plaintiff’s property and liberty rights and interests, Plaintiff’s right to be free from unreasonable search and seizure, and Plaintiff’s rights accorded to Plaintiff pursuant to 42 U.S.C. §1983, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

33. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; suffered injuries both external and internal; was caused to and did seek and obtain medical aid and attention in an attempt to cure himself; was caused to suffer great pain, agony and mental anguish and verily believes that the same will continue for a long time to come and that the injuries are permanent; that said plaintiff has been unable to carry on usual duties and occupation and will

continue to be unable to carry on same, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts.

34. That by reason of all the forgoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "34" of the complaint herein with the same force and effect as if set forth herein at length.

36. That by reason of the foregoing acts and/or omissions of Defendants GATTO and CHOI in violation of the Fourth and Fourteenth Amendments to the United States Constitution, Plaintiff has been forced to bring this lawsuit to enforce 42 U.S.C. §1983 and as a result thereof has suffered significant economic loss in the form of attorney's fees.

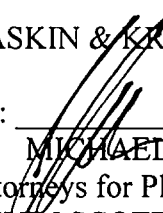
37. That pursuant to 42 U.S.C. §1983, Plaintiff is entitled to reasonable attorney's fees as part of costs.

WHEREFORE, Plaintiff, KEVIN SCOTT, demands judgment against Defendants, SERGEANT JAMES GATTO and SERGEANT HAN CHOI, in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, attorney fees, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated: New York, New York
March 23, 2018

Yours, etc.,

RASKIN & KREMINS, L.L.P.

By: 

MICHAEL F. KREMINS, ESQ.

Attorneys for Plaintiff

KEVIN SCOTT

160 Broadway - 4th Floor

New York, New York 10038

(212) 587-3434

ATTORNEY'S VERIFICATION

MICHAEL F. KREMINS, ESQ., an attorney duly admitted to practice before all Courts of the State of New York, hereby affirms the truth of the following under the perjury:

That I am a member of RASKIN & KREMINS, L.L.P., attorneys for Plaintiff herein.

That I have read the annexed COMPLAINT and know the contents thereof and that the same is true to my own knowledge except as to those matters therein alleged to be made upon information and belief, and as to those matters, I believe them to be true.

That the reason why this verification is made by your affirmant instead of Plaintiff is because Plaintiff is not within the County of New York, which is the County in which RASKIN & KREMINS, LLP maintains its office.

That the grounds for my belief as to all matters alleged to be on information and belief, are statements of said Plaintiff, papers and records in Plaintiff's possession, and a general investigation of the facts of this case.

Dated: New York, New York
March 23, 2018



MICHAEL F. KREMINS, ESQ.